

		(Yacoubian Decl., Ex. A, B, C.) The “Needs Improvement” marks were reported in DORs as early as 04/19/2024 and continued in June, July, and August. (Yacoubian Decl., Exs. A, B, C, E, H, J.) Plaintiff, however, submits evidence that DORs and supervisor weekly reports most critical of Plaintiff’s performance are unreliable because they were created after the protected activity. Plaintiff reported incidents starting no later than 06/26/2024. (See Ketzel Decl. ¶¶ 10-11.) The supervisor weekly reports created on or after 06/26/2024 contain significant critical comments and reflect subpar marks on multiple categories, whereas weekly reports created prior to 06/26/2024 are less critical and reflect satisfactory performance. (See Def.’s Ex. 5.) This is sufficient to support a reasonable inference that the reports are unreliable or set up the stage for pretextual termination. In sum, there are triable issues of fact as to whether there was a legitimate, independent ground for Plaintiff’s termination. The court will DENY the motion for summary judgment. Plaintiff to give notice.
8	Bubonic vs. Park Newport LP	Plaintiff Mary Ann Denise Bubonic’s motions to compel Defendants Bakar Properties, Inc.’s and Park Newport LP’s further responses to Plaintiff’s demand for inspection of documents, set one, and requests for sanctions is OFF CALENDAR. On 8/14/26, Plaintiff filed a notice of withdrawal stating that both of the foregoing motions are withdrawn in their entirety, including the accompanying requests for monetary sanctions of \$3,000.00. Defendants Bakar Properties, Inc.’s and Park Newport LP’s request for monetary sanctions is DENIED. Defendants contend that Plaintiff owes sanctions pursuant to Code Civ. Proc. § 2031.310, subd. (h) and Code Civ. Proc. § 2023.010, subd. (i) because Plaintiff failed to adequately meet and confer prior to filing the instant motions. However, the court finds that Plaintiff’s meet and confer attempt was sufficient. (See Teppara Decl., ¶ 5, Ex. 5). Plaintiff shall give notice.